In 1984 the United States had agreed to grant up to 20,000 visas a year to Cubans who wanted to immigrate. (The ceiling was raised to 27,000 in 1990.) But the Interests Section in Havana made it very difficult to obtain these visas – in 1993, for example, only 2700 were granted.[39] The double standard made it almost impossible for Cubans to obtain a visa by following legal channels – but rewarded those who simply took off for the United States by sea with no documents.

As the economic crisis hit, in 1991, Bay of Pigs veteran José Basulto, a wanted criminal in Cuba for his participation in an array of terrorist attacks – including one attempt to assassinate Castro – founded a new Miami organization, Brothers to the Rescue. Its stated goal was to patrol the waters between Cuba and Florida, picking up rafters fleeing the island, and counting on their official welcome into the United States.

Cuba claimed humanitarian reasons for trying to prevent illegal exit by sea, insisting that U.S. policies privileging those who arrived without formal permission encouraged the risky voyages that had resulted in many deaths. The Cuban Coast Guard returned those it was able to intercept in Cuban waters. Smugglers, and those who endangered the lives of children, were generally prosecuted. Brothers to the Rescue, the Cubans argued, only further encouraged the dangerous practice.

In this context, as the hot summer of 1994 wore on, a few Cubans resorted to desperate acts – stealing or hijacking ships – to leave bound for Florida. In accordance with U.S. policy, they were welcomed, if they could make it out of Cuban waters. In mid-July, a Cuban navy ship rammed a stolen tugboat, drowning 41 would-be migrants aboard. In early August, a naval officer was killed during a hijack attempt. The temperature, and the tensions, rose inexorably. Riots shook downtown Havana. Then, on August 11, Castro decided to call the bluff of the United States. Cubans wishing to leave by sea, he announced, would no longer be intercepted. The coast was open for departure.

Hundreds of Cubans poured out to sea in the following week. Florida's governor protested that the state could not handle the influx. On August 18, U.S. President Bill Clinton announced the unprecedented: that Cubans attempting to reach the United States without permission would no longer be welcomed. Rather, they would be sent to the U.S. military